

4. 9:00 AM CASE NUMBER: C22-00895

CASE NAME: I.B. VS. COUNTY OF CONTRA COSTA

*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS

FILED BY: COUNTY OF CONTRA COSTA

TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings ("Motion") filed by defendant County of Contra Costa ("Defendant"). The Motion argues that the sole cause of action, negligence, alleged against Defendant by plaintiff I.B. ("Plaintiff") fails to state facts sufficient to constitute a cause of action.

For the reasons discussed below, the Court's ruling is to **DENY** Defendant's Motion, without prejudice.

Meet and Confer

The meet and confer requirement has been satisfied. (Morgan W. Hansen Decl., ¶¶ 2-4; Code of Civ. Proc., § 439, subd. (a)(3)(A).)

Legal Standard for Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., §§ 438, subd. (b)(1), 438, subd. (c)(1)(B)(ii), and 438, subd. (c)(2)(A); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]"]; *See also Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 ["'A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.' [Citation omitted.]"].) A motion for judgment on the pleadings may also be made to the complaint in its entirety. (Code Civ. Proc., § 438, subd. (c)(2)(A).)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438, subd. (d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

Further, “If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment.” (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.)

Background: Facts Alleged in Complaint

In approximately the year 2000, Plaintiff was in foster care under the supervision of Defendant. (Complaint, ¶ 23.) Around that same time, Defendant placed Plaintiff in the foster home of her great

Aunt (“Foster Mother”), located in Richmond, California. (*Id.* at ¶ 24.) From approximately 2000 to 2003, when Plaintiff was approximately 11 to 13 years old, Plaintiff was sexually abused and assaulted by the adult son and teenaged grandson of her Foster Mother. (*Id.* at ¶ 25.) Plaintiff reported the sexual abuse to a counselor appointed to Plaintiff by Defendant, but no investigation was completed, no action was taken, and the perpetrators continued to sexually abuse and assault Plaintiff even after the express reports of sexual abuse. (*Id.* at ¶ 29.)

Plaintiff became pregnant at 13, and when she was 9 months pregnant, she was removed from the home of the Foster Mother because the Foster Mother did not want a baby in her home. (Complaint, ¶ 30.) Defendant learned of Plaintiff’s pregnancy but never questioned her about it or asked who the father was. (*Id.* at ¶ 31.) Defendant failed to impose appropriate standards for the safety and welfare of children in their care. (*Id.* at ¶ 44.) Defendant failed to conduct visits to Plaintiff’s foster care placement that were of sufficient frequency and/or reasonably calculated to determine whether Plaintiff was safe and not being subjected to maltreatment. (*Id.* at ¶ 48.) Plaintiff alleges that she suffered physical, psychological, and emotional injuries as a result of the childhood sexual assault she experienced. (*Id.* at ¶ 55.) Plaintiff also alleges that no employee consciously balanced the risks and advantages related to her report of sexual abuse. (*Id.* at ¶ 60.)

Plaintiff filed the Complaint on May 2, 2022, which alleges a single claim of negligence against Defendant and a single claim of negligence against the Doe defendants. (Complaint, p. 1.) She seeks general damages, special damages, treble damages, punitive damages, and costs of suit. (Complaint, p. 15.)

Discussion

Summary of Arguments

Defendant’s Motion argues that discretionary immunity bars Plaintiff’s claims. (Motion, p. 3.) Defendant asserts that Government Code section 820.2 applies here, which makes a public employee immune for their discretionary acts. (Motion, pp. 4, 6-7.) Further, where a public employee is immune to liability for a claim, such as under section 820.2, the public entity employer is also immune. (Gov. Code, § 815.2, subd. (b).) Defendant cites to *K.C. v. Cty. of Merced* (2025) 109 Cal.App.5th 606, 606, review granted June 5, 2025, S290435, as authority for the proposition that in cases where a foster child is sexually assaulted, notifies a county representative that they were or are being sexually assaulted, and the county takes no action, that the worker and county are immune

under the doctrine of discretionary authority. (Motion, p. 7.) Defendant argues that this case is similar enough to *K.C. v. Cty. of Merced* that a similar result, dismissal, should occur here, “Just like the *K.C.* plaintiff, I.B. alleges that a social worker made a decision regarding an investigation of child abuse and a subsequent decision regarding the child’s foster home placement. This Court may consequently apply discretionary immunity and dismiss the negligence claim against the County, as the alleged wrongdoing necessarily involved the exercise of analysis and judgment as to what was proper.” (Motion, p. 8.)

Plaintiff argues that this case is guided by *D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465, which “binds this Court [and] is well-settled and clear: discretionary immunity applies ‘only to deliberate and considered policy decisions, in which a [conscious] balancing [of] risks and advantages ... took place.’ ” (Opposition, p. 1.) Plaintiff contends that discretionary act immunity is a limited exception and cannot be applied as a matter of law in this case. (Opposition, pp. 4-13.) This is because under California Supreme Court precedent, only conscious and considered decision making is entitled to discretionary immunity and decisions made in the course of foster care are operational or ministerial decisions. (*Id.* at pp. 5-13.) Plaintiff also argues that the county is directly liable for breaching mandatory duties under statutes such as Welfare & Institutions Code section 328, Health & Safety Code § 1522, and Penal Code sections 11165.9 and 11166. (Opposition, pp. 13-16.) Finally, Plaintiff asks that the Court stay this matter pending resolution of the California Supreme Court’s decision in its review of the *K.C. v. Cty. of Merced* matter, if the Court is inclined to grant the Motion and dismiss this matter. (Opposition, pp. 16-17.)

Defendant argues on reply that *K.C. v. Cty. of Merced* remains persuasive law and the cases it relied on are still good law, so this Court should grant its Motion. (Reply, pp. 4-6.) Defendant argues that *D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465, is “inapposite” because it involved a ruling on summary judgment whereas the instant case involves a ruling on a motion for judgment on the pleadings, which is more similar to the demurrer considered in *K.C. v. Cty. of Merced*. (Reply, p. 4.) Defendant also argues that the Complaint presents conflating liability theories and does not contain a cause of action based on failure to discharge mandatory duties. (*Id.* at p. 3-4.) Defendant argues that the Court should grant the Motion rather than a stay because “Plaintiff has not made a strong showing that she is likely to succeed on the merits. . .” (*Id.* at p. 6.)

Analysis

The disposition of the instant Motion essentially boils down to whether this Court will follow the authority in *D.G. v. Orange County Social Services Agencies* (2025) 108 Cal.App.5th 465 (“*D.G.*”) or *K.C. v. Cty. of Merced* (2025) 109 Cal. App. 5th 606 (“*K.C.*”).

These two recent Court of Appeal opinions have both considered whether a county has discretionary immunity involving reports of sexual abuse by children in foster care families where the county does not investigate or take any action, and reached different results. *D.G.* held that the County did not meet its burden on discretionary immunity at the summary judgment stage. The following month,

K.C. held that discretionary immunity barred a negligence claim against the county on demurrer.

In *D.G.*, the court agreed with the “County that ‘decisions of child welfare agency employees—regarding determinations of child abuse, the potential risk to a child, placement of a child, removal of a child, and other resultant actions—are subjective *discretionary* ones that are incidental to the employees' investigations.’ [Citation].” (*D.G.*, *supra*, 108 Cal.App.5th at p. 473.) The court thereafter followed California Supreme Court authority holding that discretionary immunity requires a two-part analysis and after finding that the initial decision was discretionary, the court stated that the public entity must then show that “the employee who made the decision at issue ‘actually reached a considered decision knowingly and deliberately encountering the risks that give rise to plaintiffs complaint. ... [¶] ... [T]o be entitled to immunity the state must make a showing that such a policy decision, consciously balancing risks and advantages, took place. The fact that an employee normally engages in “discretionary activity” is irrelevant if, in a given case, the employee did not render a considered decision.’ (*Johnson v. State of California* (1968) 69 Cal.2d 782, 794–795, fn. 8.)” (*D.G.*, *supra*, 108 Cal.App.5th at 473-474.) The court noted that *Johnson* was followed in *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 983. (*D.G.*, *supra*, 108 Cal.App.5th at 474.)

In *D.G.*, the court found that the County had not presented any evidence on the second part of this analysis and therefore, had not met its burden on summary judgment. (*Id.* at p. 474.) The court reversed the trial court’s granting of summary judgment on immunity grounds. (*Id.* at p. 475.)

In *K.C.*, the court also held that “decisions pertaining to foster care placement are discretionary acts within the meaning of Government Code section 820.2. [Citations.]... [D]ecisions as to whether to undertake investigative or corrective action in response to reported child abuse fall outside the ambit of such [continued] surveillance and are ‘[no] less “discretionary” for purposes of the immunity of *Government Code section 820.2* than the original placement decision.’ [Citation.]” (*K.C.*, *supra*, 109 Cal.App.5th at p. 619.)

In *K.C.*, the plaintiff argued that “County’s demurrer should have been overruled because the operative complaint did not indicate ‘an employee of the County made a considered ... decision’ or ‘actually exercised’ ‘discretion ... by the weighing of risks and benefits in deciding on the challenged course of action.’ ” (*K.C.*, *supra*, 109 Cal.App.5th at 619.) The court, citing to *Caldwell*, *supra*, 10 Cal.4th at p. 982, explained that an immunity finding “ ‘requires a showing that “the specific conduct giving rise to the suit” involved an actual exercise of discretion, i.e., a “[conscious] balancing [of] risks and advantages” ’[citation.] ‘a strictly careful, thorough, formal, or correct evaluation’ is not mandatory [citation].” (*K.C.*, *supra*, 109 Cal.App.5th at p. 619.) The court reviewed the allegations in K.C.’s complaint and held that “under a ‘fair reading’ of the complaint (*Caldwell*, *supra*, at p. 984), K.C. essentially alleged County’s social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. ‘[C]laims of improper evaluation cannot divest a discretionary policy decision of its immunity.’ (*Caldwell*, *supra*, at p. 984, fn. & italics omitted.)”. (*K.C.*, *supra*, 109 Cal.App.5th at pp. 619-

620.)

In *K.C.*, it was alleged that the child made complaints regarding the abuse to her social worker, but no corrective action was taken. (*K.C.* at pp. 614-615.) In *D.G.*, the child told his social worker that “bad people are hurting” him and tried to explain what that meant and there was evidence that the child had a known bedwetting problem. (*D.G.* at pp. 468-469.) In *D.G.*, there was also evidence that another child had made reports regarding the same foster parent that he felt weird taking showers with the foster parent because it was yucky. (*D.G.* at p. 469.) There was no follow up on the child complaints and ultimately the foster parent was allowed to adopt D.G. (*Ibid.*)

On June 25, 2025, the California Supreme Court granted review of *K.C.* on the following issue: “Was plaintiff’s complaint alleging that a social worker failed to investigate or act in response to claims of sexual abuse subject to demurrer on the ground that discretionary act immunity under Government Code section 820.2 precluded liability?” The Supreme Court also stated that “[p]ending review, the opinion of the Court of Appeal... may be cited, not only for its persuasive value, but also for the limited purpose of establishing the existence of a conflict in authority that would in turn allow trial courts to exercise discretion under *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 456, 20 Cal. Rptr. 321, 369 P.2d 937, to choose between sides of any such conflict.” (*K.C. v. County of Merced* (2025) 333 Cal.Rptr.3d 361, Supreme Court case no. S290435.) The case has been fully briefed, but the California Supreme Court has not scheduled oral argument. Since an opinion is not immediately forthcoming, the instant Court will move forward on this issue based on the current state of the law.

K.C. distinguished *D.G.* by explaining that *D.G.* was decided on summary judgment, not demurrer. (*K.C.*, *supra*, 109 Cal.App.5th at p. 620, fn. 9.) But allegations in both *K.C.* and *D.G.* were very similar and *K.C.* did not explain what allegation was included in *D.G.* that explains the differing results between the two cases. It appears to the Court that these two cases disagree on how to apply the second step in the discretionary immunity analysis in cases involving abuse of foster care children. Thus, there are conflicting court of appeal opinions, and the Court may decide to follow either *K.C.*’s or *D.G.*’s approach to the discretionary immunity analysis. (*Auto Equity Sales, supra*, 57 Cal.2d at p. 456.)

Plaintiffs argue that *K.C.* was wrongly decided due to missing “the critical distinction between policy-level decisions affecting the future of a child in his or her natural home and ministerial decisions advancing the care and safety of a child who has been placed in foster care in the governmental defendant’s custody.” (Opposition, p. 11.) Plaintiffs point to *Johnson v. State of California* (1969) 69 Cal.2d 782, where the California Supreme Court held that a County’s initial decision to place a child in the foster home may have been discretionary, but that the implementation of that policy, including the determination whether to warn the foster parents of known dangers, was ministerial and not subject to immunity. (Opposition, p. 10; *Johnson*, at pp. 795-796.) Additionally, in *D.G.*, the court ruled that the second step in the discretionary immunity analysis—that a conscious and considered decision, weighing risks and advantages in light of the available information—was not shown to have

taken place. (Opposition, pp. 8-9, *D.G.*, at p. 474 [“There is simply no evidence in the record that Tanasse, or anyone else, exercised discretion as described in *Johnson* and *Caldwell*.”].)

Defendant does not offer a robust analysis for why *D.G.* was incorrectly decided beyond pointing out that it is “inapposite” to our case here because it dealt with a motion for summary judgment, whereas *K.C.* analyzed this issue in the context of a demurrer. (Reply, p. 4:11-17.) Defendant did not mention or offer any argument about *D.G.* in its moving papers. (Motion, pp. 1-9.)

Here, the Court will follow *D.G.* because it is explicitly binding on this Court, unlike *K.C.* (*K.C. v. County of Merced* (2025) 333 Cal.Rptr.3d 361 [California Supreme Court granting review].) After the California Supreme Court grants review of a court of appeal decision, as it has for *K.C.*, “a published opinion of a Court of Appeal in the matter has **no binding or precedential effect**, and may be cited for potentially persuasive value only. Any citation to the Court of Appeal opinion must also note the grant of review and any subsequent action by the Supreme Court.” (Cal. Rules of Court, rule 8.1115(e)(1), emphasis added.) While the Court is able to “exercise discretion” and “choose between sides” of such a conflict, that is not the most judicious path in close calls like this. (*K.C. v. County of Merced*, *supra*, 333 Cal.Rptr.3d 361.) Further, California Supreme Court authority expressly provides that, “[i]mmunity for ‘discretionary’ activities serves no purpose except to assure that courts refuse to pass judgment on policy decisions in the province of coordinate branches of government. Accordingly, to be entitled to immunity the state **must make a showing that such a policy decision, consciously balancing risks and advantages, took place.**” (*Johnson v. State of California* (1968) 69 Cal.2d 782, 794, fn. 8, emphasis added; *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 981 [“immunity applies only to deliberate and considered policy decisions, in which a “[conscious] balancing [of] risks and advantages . . . took place.”].) Here, as pointed out by Plaintiff, there is nothing in the Complaint that alleges such conduct occurred. Indeed, “facts not alleged are presumed not to exist.” (*Kramer v. Intuit, Inc.* (2004) 121 Cal.App.4th 574, 578.)

Additionally, the Complaint here *expressly* alleges that “no employee consciously balanced risks and advantages. . .” (Complaint, ¶ 60.) In *K.C.*, the court ruled, “under a ‘fair reading’ of the complaint [citation], *K.C.* essentially alleged County’s social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so.” (*K.C. v. County of Merced* (2025) 109 Cal.App.5th 606, 619-620.) Here, due to the explicit allegations in the Complaint, this Court is unable to give the Complaint a “fair reading” as to what it “essentially” alleges, as the court did in *K.C.* (*K.C. v. County of Merced* (2025) 109 Cal.App.5th 606, 619.) Even if the Complaint did not so explicitly allege that there was no conscious balancing of risks and advantages, California Supreme Court authority holds that “the state must make a showing that such a policy decision, consciously balancing risks and advantages, took place.” (*Johnson*, *supra*, 69 Cal.2d at p. 794, fn. 8.) Here, at the pleading stage, a Defendant cannot simply insert facts such as those into consideration that are not alleged in the complaint or subject to judicial notice. (Code Civ. Proc. § 438, subd. (d).) Further, reading something into a complaint that weighs so heavily against a plaintiff in a pleadings challenge would seem to violate the principle that

all facts are accepted as true and are given a liberal construction at this stage of litigation. (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Therefore, the Court denies Defendant's motion for judgment on the pleadings as to Plaintiff's Complaint, without prejudice to Defendant re-filing a motion for judgment on the pleadings should the California Supreme Court affirm *K.C.*

Ruling

The Court **DENIES** Defendant's motion for judgment on the pleadings, without prejudice to Defendant re-filing a motion for judgment on the pleadings should the California Supreme Court affirm *K.C. v. Cty. of Merced* (2025) 109 Cal.App.5th 606, review granted June 5, 2025, S290435.

5. 9:00 AM CASE NUMBER: C24-00262
CASE NAME: THAYDRA JOHNESE VS. MOHR GREEN ASSOCIATES L.P. D/B/A HIDDEN CREEK TOWNHOMES
HEARING ON SUMMARY MOTION
FILED BY: MOHR GREEN ASSOCIATES L.P. D/B/A HIDDEN CREEK TOWNHOMES
TENTATIVE RULING:

Before the Court is Defendants Mohr Green Associates L.P. dba Hidden Creek Townhomes ("Mohr Green") and Ray, Douglas, Ann & Patrick, Inc., dba RPM Company's ("RPM") Motion for Summary Judgment, or in the Alternative, Summary Adjudication. The Complaint alleges two causes of action: (1) Negligence, and (2) Premises Liability.

Defendants' Request for Judicial Notice is **granted**. (Evid. Code § 452 (d).)

For the following reasons, Defendants' Motion for Summary Judgment is **granted**.

Factual Background

This matter relates to an incident that occurred on July 7, 2023. (UMF 1.) On that date, Plaintiff was employed by Signal 88 Northbay Security Service (Signal 88) as a Mobile Security Officer ("MSU"). (UMF 3.) As part of her employment, Plaintiff was walking through the property known as Hidden Creek Townhomes, in Concord, California ("Property"). (UMF 1, 3, 8.) While making her patrol, Plaintiff observed a grate in her path of travel. (UMF 20.) Because she did not want to step on the grate, she stepped onto a pile of leaves adjacent to the grate. (*Ibid.*) Upon stepping on the leaves, Plaintiff slipped and fell. (*Ibid.*)

At the time of the incident, Defendant Mohr Green owned the Property and Defendant RPM was the property manager. (UMF 5-6.) Signal 88 was contracted by RPM, on behalf of Mohr Green, to provide security services for the Property. (UMF 4, 7.)

Mohr Green and RPM did not directly employ Plaintiff at any time, including on the date of the incident. (UMF 10.) Mohr Green and RPM did not train Plaintiff for her job, nor did they provide her with any equipment. (UMF 12-13, Johnese Decl. ¶ 4.) In addition, Mohr Green and RPM did not direct